

Smt. Khushbu Soni @ Situ W/O Shri Vishnu ... vs Vishnu Kumar Soni S/O Shri Kishanlal ... on 13 April, 2023

Author: Sameer Jain

Bench: Sameer Jain

[2023/RJJP/005246]

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 106/2020

Smt. Khushbu Soni @ Situ W/o Shri Vishnu D/o Shri Chandrabhan Soni, Aged About 30 Years, R/o Gram Garhi Sawairam, Tehsil Rajgarh, District Alwar, Rajasthan. (At Present Working As Govt. Teacher, Rajasthan Upper Primary School, Thakurala, District Pali.).

----Petitioner

Versus

Vishnu Kumar Soni S/o Shri Kishanlal Soni, aged about 28 years, R/o Gram Khawaravji. (At Present Residing At 19, Saksham Vihar Colony, Getolao, Dausa, District Dausa, Rajasthan.).

----Respondent

For Petitioner(s) : Mr. Salman Agha, through V.C. For Respondent(s) : Mr. M.K. Kaushik HON'BLE MR. JUSTICE SAMEER JAIN Order Reserved on 27.03.2023 Pronounced on 13.04.2023

1. This transfer application has been filed by the applicant-wife under Section 24 of the Code of Civil Procedure, 1908, seeking transfer of Case No.74/2020 filed under Section 13 of the Hindu Marriage Act, 1955 titled as "Vishnu Kumar Soni Vs. Khushbu Soni" from Family Court, Dausa to Family Court, Pali.

2. In the instant matter, vide order dated 26.11.2020, further proceedings were stayed before the concerned Family Court at Dausa. Thereafter, service was effected upon the respondent on 22.01.2021. As on today, both the sides have marked their appearance before the Court and have put forth their rival contentions.

[2023/RJJP/005246] (2 of 4) [CTA-106/2020]

3. Learned counsel for the applicant-wife has sought transfer, primarily on the following grounds:

(i) That the applicant-wife is presently residing in Pali, Rajasthan.

(ii) That the distance between Pali and Dausa is over 370 Kms.

(iii) That the applicant-wife does not have the infrastructural support, in terms of family members, who can accompany her to court proceedings pending in Dausa, as her parents are aged members of the society who are suffering from various ailments.

(iv) That the applicant-wife is presently working as a Government Teacher in Pali, therefore, it is very difficult for her to obtain a leave on each and every date of hearing in the matter.

(v) That the applicant -wife apprehends threat to her life and liberty if she is made to travel to Dausa on every date of hearing in the matter.

4. Per contra, learned counsel for the respondent-husband has vehemently opposed the transfer application. He has submitted that the respondent-husband is an unemployed individual, who does not have the financial strength to travel to Pali, if the matter is transferred thereto. However, the factum of the respondent's financial plight is disputed by the applicant-wife, who has claimed that the respondent is the proprietor of a private business with sufficient financial means.

5. Heard the rival submissions and perused the records.

6. Considering the contentions put forth by both the sides and considering the fact that the applicant-wife is presently residing in [2023/RJJP/005246] (3 of 4) [CTA-106/2020] Pali; that the distance between Pali and Dausa is over 370 Km; that the applicant-wife is presently working as a Government Teacher in Pali, therefore, it is very difficult for her to obtain a leave for attending Court proceedings in Dausa on each and every date of hearing in the matter; that the applicant-wife does not have the infrastructural support, in terms of family members, who can accompany her to Court proceedings pending at Dausa, as the parents of the applicant are aged members of the society, who are suffering from a lung disorder along with having cataract and an audible ability of merely 10%; that the applicant-wife apprehends threat to her life and liberty if she is made to travel to Dausa on every date of hearing in the matter; that the fact of the respondent-husband's financial plight is not sufficiently established; considering the provisions of Section 19 of the Hindu Marriage Act and relying upon the judgments of the Apex Court in N.C.V. Aishwarya vs. A.S. Saravana Karthik Sha: Civil Appeal No. 4894/2022, Sumita Singh Vs. Kumar Sanjay & Ors.: AIR 2002 SC 396, Rajni Kishor Pardeshi Vs. Kishor Babulal Pardeshi: (2005) 12 SCC 237, and Vaishali Shridhar Jagtap Vs. Shridhar Vishwanath Jagtap: AIR 2016 SC 3584, this Court deems it just and proper to transfer the Case No.74/2020 from the court of learned Family Court, Dausa to learned Family Court, Pali.

7. Accordingly, the present transfer application is allowed. The Case No.74/2020 be transferred from the court of learned Family Court, Dausa to learned Family Court, Pali.

[2023/RJJP/005246] (4 of 4) [CTA-106/2020]

8. Both parties are directed to appear before the transferee court on 08.05.2023 By that time, the record of the case be transmitted to the transferee Court by the Court concerned. It is made clear that if any of the parties would not appear on the date fixed by this Court, the transferee court would

be at liberty to proceed in accordance with law.

9. It is expected that the transferee court shall dispose of the matter as expeditiously as possible; preferably within the prescribed time period as stipulated in the Act.

10. Stay application and other pending applications, if any, stand disposed of.

11. Registrar (Judicial) is directed to supply a copy of this order, forthwith, in the concerned court of learned Family Court, Dausa for necessary compliance.

(SAMEER JAIN),J JKP/1 Powered by TCPDF (www.tcpdf.org)